

Chief Justice's Court

Case :- WRIT - C No. - 22187 of 2023

Petitioner :- Rajendra Babu Mishra

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Pandey, Dewarshi Kumar Rai

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Pritinker Diwaker, Chief Justice

Hon'ble Ashutosh Srivastava, J.

Shri Narendra Kumar Tiwari, learned counsel for respondent Nos. 4 and 5 prays for and is granted 10 days time to seek necessary instructions in the matter.

List this case after 10 days as fresh.

Order Date :- 13.7.2023

Ravi Prakash

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, C.J.)

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Hon'ble Ashutosh Srivastava, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State respondent nos. 1 to 3 and Shri Narendra Kumar Tiwari, learned counsel for the respondent nos. 4 & 5.

2. The challenge in this writ petition is to the recovery citation dated 21.02.2023, issued by the Executive Engineer, Purvanchal Vidyut Virtran Nigam Limited, Vidyut Vitran Khand-III, Khaga, Fatehpur, wherein, a sum of Rs. 3,76,774/- stated to be due against the petitioner, towards electricity dues.

3. It is the case of the petitioner that he has been regularly paying his bills and despite that the recovery proceedings has been drawn against the petitioner.

4. Learned counsel appearing for the respondents submit that in fact the petitioner has two connections and there are electricity dues with respect to both the connections.

5. From the records we find that the petitioner is disputing the bills as raised. In our opinion the petitioner can approach the respondent invoking clause 6.5 of the Electricity Supply Code, 2005. In the eventuality of the petitioner preferring a representation, under the said provisions within two weeks from today, it is expected that the respondent no. 4, Executive Engineer, Purvanchal Vidyut Virtran Nigam Limited, Vidyut Vitran Khand-III, Khaga, Fatehpur, shall consider and pass appropriate orders on the representation of the petitioner. No recovery shall be made from the petitioner pending decision on the representation and any orders for recovery shall abide by the decision taken on the representation of the petitioner under clause 6.5 of Electricity Supply Code, 2005.

6. With the aforesaid observations the writ petition is disposed of.

Order Date :- 24.7.2023

Deepak/

(Ashutosh Srivastava, J) (Pritinker Diwaker, C.J.)